



Order under Section 21.2 of the Statutory Powers Procedure Act and the Residential Tenancies Act, 2006

Citation: Presseau v Mannone, 2025 ONLTB 98292

Date: 2025-12-30 **File Number:**
LTB-L-044914-25-RV

In the matter of: 563 MARGUERITE ST
ESPANOLA ON P5E1L5

Between: Lynne Presseau Landlord

And

Simona Mannone Tenant

Review Order

Lynne Presseau (the 'Landlord') applied for an order to terminate the tenancy and evict Simona Mannone (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was resolved by order LTB-L-044914-25 issued on November 25, 2025.

On December 6, 2025, the Tenant requested a review of the order.

A preliminary review of the review request was completed without a hearing.

Note: It appears that the Tenant may have filed an appeal of the order under review with the Divisional Court. To the extent necessary, the stay of this matter imposed by commencement of the appeal is lifted to allow this request to review to be decided on a preliminary basis, pursuant to subsection 25(1)(b) of the *Statutory Powers Procedure Act*, R.S.O., c. S.22.

Determinations:

1. The hearing that gave rise to the order under review took place on November 18, 2025. The Tenant attended the hearing with a legal representative.
2. The order under review was made on consent of the parties.
3. In the review request the Tenant submits that her co-tenant, who is the Landlord's son, ought to have been named in the proceedings and that, because he was not named, the

Tenant was prevented from presenting evidence of the co-tenant's actions, which explain the arrears.

4. The Tenant was prevented from giving evidence by her decision to consent to the terms of an order. If the Tenant had decided not to consent to terms, she would have been able

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to give any evidence that she would have liked to give as long as it was relevant to the issue of arrears (or to the issue of relief from eviction). Also, at the hearing the Tenant or her legal representative could have raised the issue as to whether the co-tenant should be named as a Tenant but they did not do so.

5. The Divisional Court has stated that "parties ought not to be easily able to revisit Board orders that have been made on consent. The effective resolution of matters that come before the Board will be greatly impaired if parties can continually seek to revisit issues that they have earlier agreed to resolve." (*Trust Construction Corporation v. McKie*, 2017 ONSC 4702)
6. The Divisional Court also stated that "The policy of the courts is to promote settlement. The discretion to refuse to enforce a settlement should be exercised rarely...agreements, and joint submissions, are serious and they should not be easy to simply overturn. To allow parties, after the fact, to raise claims they could have or allow second thoughts after an agreement is struck would cause unnecessary waste on our Tribunals and Courts. No one, even with an order, would feel safe to rely on what has been agreed to. This would not be a just result." (*Gent v. IMH Pool III LP*, 2017 ONSC 7230 CanLII)
7. The review request does not provide a sufficient reason to revisit the consent order.
8. On the basis of the submissions made in the request, I am not satisfied that there is a serious error in the order or that a serious error occurred in the proceedings.

It is ordered that:

1. The request to review order LTB-L-044914-25 issued on November 25, 2025 is denied. The order is confirmed and remains unchanged.

December 30, 2025

Date Issued

Renée Lang

Vice Chair, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

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